

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

CASE OF GUSEV AND OTHERS v. RUSSIA

(Applications nos. 33633/21 and 21 others –
see appended list)

JUDGMENT

STRASBOURG

14 March 2024

This judgment is final but it may be subject to editorial revision.



In the case of Gusev and Others v. Russia,

The European Court of Human Rights (Second Section), sitting as a Committee composed of:

Lorraine Schembri Orland*, President*,
Frédéric Krenc,
Davor Derenčinović*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 15 February 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention and Protocols to it.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Lashmankin and Others v. Russia*, nos. 57818/09 and 14 others, § 489, 7 February 2017, *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies;

Karelin v. Russia, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to the facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 14 March 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Lorraine Schembri Orland President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
1.	33633/21 25/05/2021	**Konstantin Viktorovich GUSEV** 1977	Savin Aleksandr Vasilyevich Stavropol	Rally in support of A. Navalnyy Pyatigorsk 31/01/2021	article 20.2.2 § 1 of CAO	administrative detention of 10 days	Stavropol Regional Court 11/02/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12.45 p.m. on 31/01/2021 to 01/02/2021, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Stavropol Regional Court, 11/02/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
2.	41987/21 01/08/2021	**Dmitriy Andreyevich KONOSHONKIN** 1996		Rally in support of A. Navalnyy Moscow 02/02/2021	article 20.2 § 6.1 of CAO	detention of 8 days	Moscow City Court 18/03/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 11.00 p.m. on 02/02/2021 to 12.30 p.m. on 03/02/2021	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
3.	49534/21 16/09/2021	**Stanislav Vladimirovich SHANTALIN** 1996	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally in support of A. Navalnyy Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 06/04/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence, on 23/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 06/04/2021	4,000
4.	50403/21 22/09/2021	**Ivan Aleksandrovich NAKONECHNYY** 1993	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally in support of A. Navalnyy Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 28/04/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence, on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 28/04/2021	4,000
5.	50418/21 21/09/2021	**Pavel Vladimirovich KRASNOV** 1973	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally in support of A. Navalnyy Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 28/04/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence, on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 28/04/2021	4,000
6.	50852/21 08/10/2021	**Aleksandr Alekseyevich BELKOV** 1994	Zhdanov Ivan Yuryevich Vilnius	Rally in support of A. Navalnyy Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 16/04/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence, detention in excess of 3 hours and without "exceptional circumstances", from 10.20 a.m. to 9.00 p.m. on 02/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 16/04/2021	4,000

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7.	52339/21 22/09/2021	**Nikolay Viktorovich BELYAYEV** 1974	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally in support of A. Navalnyy Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 21/05/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence, on 02/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 21/05/2021	4,000
8.	55323/21 23/10/2021	**Denis Olegovich POPOV** 1994	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally in support of A. Navalnyy Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 03/06/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence, on 23/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 03/06/2021	4,000
9.	55334/21 23/10/2021	**Andrey Vladimirovich KHABAROV** 1998	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally in support of A. Navalnyy Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 23/06/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence, on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 23/06/2021	4,000
10.	55543/21 23/10/2021	**Svetlana Azamatovna BATCHAYEVA** 1997	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally in support of A. Navalnyy Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 19/05/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence, on 23/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 19/05/2021	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
11.	56301/21 15/11/2021	**Galina Grigoryevna KARPENKO** 1953	Zhdanov Ivan Yuryevich Vilnius	Rally in support of A. Navalnyy Vladivostok 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Primorye Regional Court 25/05/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 12.40 p.m. to 7.00 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Primorye Regional Court, 25/05/2021	4,000
12.	56419/21 23/10/2021	**Mikhail Andreyevich BORZUNOV** 1988	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally in support of A. Navalnyy Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 09/06/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence, on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 09/06/2021	4,000
13.	56421/21 23/10/2021	**Anton Vladimirovich KRUGLOV** 1987	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally in support of A. Navalnyy Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 03/06/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence, on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 03/06/2021	4,000
14.	56422/21 23/10/2021	**Aleksey Nikolayevich VORONOV** 1988	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally in support of A. Navalnyy Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 19/05/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence, on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 19/05/2021	4,000

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15.	57359/21 29/10/2021	**Alena Nikolayevna RYABOVA** 1999	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally in support of A. Navalnyy Moscow 02/02/2021	article 20.2 § 6.1 of CAO	administrative detention of 5 days	Moscow City Court 27/05/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 10.00 p.m. on 02/02/2021 to 03/02/2021, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 27/05/2021	5,000
16.	57370/21 29/10/2021	**Yekaterina Viktorovna SOKOLOVA** 1966	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally in support of A. Navalnyy Moscow 02/02/2021	article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 25/05/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 10.00 p.m. on 02/02/2021 to 03/02/2021, hearing in the applicant's administrative-offence case, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 25/05/2021	4,000
17.	57569/21 07/11/2021	**Toirdzhon Kurbonaliyevich SATTOROV** 1999	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally in support of Izzat Amono (human rights activist) Moscow 02/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 13/07/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence, on 02/04/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 13/07/2021.	4,000

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18.	59060/21 27/11/2021	**Yevgeniy Andreyevich ZUBKOV** 1994	Zhdanov Ivan Yuryevich Vilnius	Rally in support of A. Navalnyy Volgograd 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Volgograd Regional Court 02/06/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 9.00 p.m. on 21/04/2021 to 00.05 a.m. on 22/04/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Volgograd Regional Court, 02/06/2021.	4,000
19.	59087/21 19/11/2021	**Andrey Dmitriyevich BOYKO** 1994	Zhdanov Ivan Yuryevich Vilnius	Rally in support of A. Navalnyy Kurgan 21/04/2021	article 20.2 § 5 of CAO	community works of 30 hours	Kurgan Reginal Court 26/05/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence, on 21/04/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Kurgan Reginal Court, 26/05/2021	4,000
20.	59138/21 27/11/2021	**Yevgeniy Semenovich KIRILLOV** 1990	Zhdanov Ivan Yuryevich Vilnius	Rally in support of A. Navalnyy Nizhnekamsk 23/01/2021	article 20.2 § 8 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 02/06/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence, on 23/01/2021	4,000
21.	59227/21 27/11/2021	**Dmitriy Eduardovich KRIVOSHEIN** 1988	Zhdanov Ivan Yuryevich Vilnius	Rally in support of A. Navalnyy Perm 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Perm Regional Court 04/06/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Perm Regional Court, 04/06/2021	3,500

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22.	61686/21 08/12/2021	**Konstantin Sergeyevich ULYANOV** 1989	Zhdanov Ivan Yuryevich Vilnius	Rally in support of A. Navalnyy Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 19/07/2021	Art. 5 (1) - unlawful deprivation of liberty: escorting to a police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 1.55 p.m. to 8.30 p.m. on 23/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court, 19/07/2021	4,000

[1] Plus any tax that may be chargeable to the applicants.